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LEGAL TRANSCRIPT

Refugee Claim Hearing and Proceedings of [CLIENT NAME] on September 22, 2015 in TORONTO, ONTARIO *Case # [CASE NUMBER]*

Prepared for: [CLIENT NAME]

Transcribed from digital media by: Cynthia Ohenhen
Cyber-Pro Word Processing & Transcription Services
1400 Bathurst Street, Suite 422 Toronto, ON M5R 3S5 Canada
Web: https://cyberproservices.github.io/cyberproservices/ Email: cyberproservices.com@gmail.com
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PROCEEDINGS

Judge: [JUDGE NAME]

Claimant:[CLIENT NAME]

[COUNSEL NAME]: [[COUNSEL NAME]

Date and Time: September 22, 2015 at 1:17:16

Length: 1:47:07

(BEGINNING OF TRANSCRIPT)

[JUDGE NAME]: All right, good afternoon. We're now in the record.

[CLIENT NAME]: Good afternoon.

[COUNSEL NAME]: Good afternoon.

[JUDGE NAME]: Okay, so let me confirm first of all that sir, you have chosen to proceed in English without an interpreter. Is that correct?

[CLIENT NAME]: Yes, Ma'am.

[JUDGE NAME]: Okay, so I'm going to ask you at this time sir, to please stand and raise your right hand.

[CLIENT NAME]: Okay.

[JUDGE NAME]: Do you solemnly affirm the evidence you give today shall be the truth, the whole truth, and nothing but the truth?

[CLIENT NAME]: Yes.

[JUDGE NAME]: Thank you. Please have a seat.

[CLIENT NAME]: Okay.

[JUDGE NAME]: . . . and please state your full name for the record.

[CLIENT NAME]: [CLIENT NAME]

[JUDGE NAME]: Okay, thank you. This is the jury for file [CASE NUMBER]. Today is September 22nd 2015. We are in Toronto, Ontario and you are represented here today by your [COUNSEL NAME] and [COUNSEL NAME], could I please have you introduce yourself for the record?

[COUNSEL NAME]: Thank you Ma'am. My name is [COUNSEL NAME]. Good afternoon, Ma'am.

[JUDGE NAME]: And good afternoon. My name is [JUDGE NAME]. I'm a member of the [unclear] edition. I have the responsibility to serve to decide your claim. Now I'm going to go through with some administrative matters before we start with your testimony. So, first of all, I'm going to turn to your basis of claim form.

Alright, so in your basis of claim form that is on a exhibit 10—the signature page. I'm going to ask you to confirm that's your signature at the top of the page there.

[CLIENT NAME]: Yes, Ma'am.

[JUDGE NAME]: Alright, thank you. And I'm going to ask you to confirm that you understand all of the information that is contained in that form.

[CLIENT NAME]: I do.

[JUDGE NAME]: And I'm going to also ask you that the contents of your form is complete true and correct.

[CLIENT NAME]: Yes, Ma'am.

[JUDGE NAME]: Alright, so I'm going to turn now to—the exhibits that I have on file. So, exhibit number 1 is the package of documents from Citizenship and Immigration. So this exhibit includes all of the application forms that you completed when you made your run.

[CLIENT NAME]: Thank you.

[JUDGE NAME]: It also includes a copy of your passport.

[CLIENT NAME]: Yes, Ma'am.

[JUDGE NAME]: Exhibit number 2 is your basis of claim form. And exhibit number 3 is the national documentation package for Nigeria and this is the current version which is dated July 17,

2015. Exhibit number 4 is your [COUNSEL NAME]'s document number 2 which consists of a series of visas. Exhibit number 5 is your [COUNSEL NAME]'s document number 3—your psychological report. Exhibit number 6 is [COUNSEL NAME]'s documents 4 through 22. And exhibit number 7 is document number 23 and 24. Exhibit number 8 is [COUNSEL NAME] is document 25, and then it has exhibit number 9 as the copy of your Canadian Temporary Resident Visa Application. Alrighty…

So, I didn't realize that [unclear] a little bit complication. This application was given to you today on a cell phone you had received it today as well. So, I just want to ensure that you are ready to proceed today sir-

[CLIENT NAME]: I'm—

[JUDGE NAME]: You are ready to proceed today? We'll make this motion?

[CLIENT NAME]: Yes, yes, Ma'am

[JUDGE NAME]: So that's 90 exhibits in total then. So, I'm going to go through issues that I [detected] today. First of all, "identity." So, you need to establish your personal identity. You also need to establish your national identity as a citizen of Nigeria. And in your particular circumstances, you will also need to establish your sexual identity.

Credibility is going to be assessed. And I'm going to assess your credibility with respect to your oral testimony as well as all of the documents that you have provided.

And then lastly, I'm going to talk umh—address the issue of your claim in the United States. I'm going to ask you some questions about whether you sought asylum protection in the United States on the previous locations that you went there. If not, why not? So, these are the areas I'd like to look at.

[COUNSEL NAME]: Thank you.

[JUDGE NAME]: Thank you [COUNSEL NAME]. So at this point sir, I'm going to return the—Let me return your original documents back to your [COUNSEL NAME]. [COUNSEL NAME] here you go.

Alright, so let me confirm your address before you go. What I have on file is [CLIENT ADDRESS] That's still correct?

[CLIENT NAME]: Yes.

[JUDGE NAME]: Okay. Is there a unit number or is this a house?

[CLIENT NAME]: It's a house.

[JUDGE NAME]: Okay. So, that is where your decision and reasons will be mailed to once it's been finalized. It is important sir the board with your new address if you move in the next coming weeks. I'd like to thank you for your attendance here today. I also thank you for your assistance. We are now concluded.

[CLIENT NAME]: Thank you.

(END OF TRANSCRIPT)

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Cynthia Ohenhen, Cyber-Pro Services Date